

Supreme Court of The State of New York
County of Kings

JOSHUA SPEARS

Plaintiff,

- against -

THE CITY OF NEW YORK, THE NEW YORK CITY POLICE
DEPARTMENT, P.O ZAMAN SHAZANA of the PSA 3 Command /
Precinct, SGT. DESHOMMES JEFFREY of the of the PSA 3 Command
/ Precinct and SGT. “Blackman” and P.O. “Angelo”, both full and actual
names unknown and P.O. SERGIO MONTY ANG, of the PSA 3
Command / Precinct,

Defendants-

Date Purchased

Index No.

Plaintiff(s) designate(s)

Kings County
as the place of trial

Summons

Plaintiff(s) reside(s) at
605 Park Avenue, Apt. 6A
Brooklyn, New York 11206.

To the above-named Defendant(s)

You are hereby summoned to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: March 4, 2024
Brooklyn, NY

THE FORZANO LAW FIRM
Attorney for the Plaintiffs
Office and Post Office Address
271 Avenue U
Brooklyn, New York 11223
(718) 372-1397

Defendant's Address:

CITY OF NEW YORK	PO ZAMAN SHAZANA	PO SERGIO MONTY ANG	SGT DESHOMMES JEFFREY
100 Church Street	PSA 3 Command	PSA 3 Command	PSA 3 Command
New York, NY 10007	25 Central Avenue	168-02 91 st Avenue	168-02 91 st Avenue
	Brooklyn, NY 11432	Jamaica, NY 11432	Jamaica, NY 11432

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County of Kings**

JOSHUA SPEARS

Plaintiff,

- against -

THE CITY OF NEW YORK, THE NEW YORK CITY
POLICE DEPARTMENT, P.O ZAMAN SHAZANA of the
PSA 3 Command / Precinct, SGT. DESHOMMES JEFFREY
of the of the PSA 3 Command / Precinct and SGT.

“Blackman” and P.O. “Angelo”, both full and actual names
unknown and P.O. SERGIO MONTY ANG, of the PSA 3
Command / Precinct,

Defendants.

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VERIFIED COMPLAINT

Plaintiff, JOSHUA SPEARS, by his attorneys, THE FORZANO LAW FIRM, complaining of the Defendants herein, as and for his Verified Complaint, upon information and belief, alleges:

FIRST: That at all times hereinafter mentioned the Plaintiff, SHANEE JENNINGS, was and still is a resident of the County of Queens, City and State of New York.

SECOND: That at all times hereinafter mentioned the Defendant, THE CITY OF NEW YORK, was and still is a Municipal Corporation duly organized and existing under and by virtue of the laws of the State of New York.

THIRD: That at all times hereinafter mentioned, the Defendant, THE NEW YORK CITY POLICE DEPARTMENT, was and still is an agency of THE CITY OF NEW YORK.

FOURTH: That at all times hereinafter mentioned the Defendant, Police Officer ZAMAN SHAZANA, was and still is employed as a New York City Police Officer, working out

of the PSA 3 Command, in the County of Kings, City and State of New York

FIFTH: That at all times hereinafter mentioned, the Defendant, Police Sargeant DESHOMMES JEFFREY was and still is employed as a New York City Police Officer, working out of the PSA 3 Command, in the County of Kings, City and State of New York.

SIXTH: That at all times hereinafter mentioned, the Defendant, Police Officer SERGIO MONTY ANG, was and still is employed as a New York City Police Officer, working out of the PSA 3 Command, in the County of Kings, City and State of New York.

SEVENTH: That at all times hereinafter mentioned the Defendants Police Sargeant “Blackman” and Police Officer “Angelo” real names being unknown to Plaintiff at this time, and intending to be the Police Officers who participated in this incident, were and still are employed as a New York City Police Officers, working out of the PSA 3 Command, in the County of Kings, City and State of New York.

EIGHTH: That at all times herein mentioned the officers were acting within the scope and course of their employment with the New York Police Department, and under color of Law.

NINTH: That all of the causes of actions pleaded herein fall within one or more of the exceptions set forth in the New York's Civil Practice Law & Rules 1602 with respect to joint and several liability.

FIRST CAUSE OF ACTION
FALSE ARREST & FALSE IMPRISONMENT

TENTH: Plaintiff repeats and realleges each and every allegation contained in paragraphs FIRST through NINTH as though set forth at length herein.

ELEVENTH: That on or about March 12, 2023 and continuing to March 13, 2023 while Plaintiff, lawfully in and near his motor vehicle parked outside of his residence at 605 Park Avenue, Brooklyn, New York, the Defendants, P.O. ZAMAN SHAZANA, SGT. DESHOMMES JEFFREY; SERGIO MONTY ANG, and Police Officers "Blackman" and "Angelo ", acting on behalf of the Defendant, THE CITY OF NEW YORK in the scope of their employment by THE NEW YORK CITY POLICE DEPARTMENT, and in connection with an illegal and false arrest; removed the Plaintiff from his car under the threat of violence; accosted Plaintiff without provocation; lifted and slammed the Plaintiff onto the car; struck the claimant in the back multiple times, beat him about the head, neck, back and body; accosted the claimant, forcibly handcuffed the claimant, twisted the claimants arms and wrist unnaturally, mocked and insulted him in front of his family members and neighbors and arrested him. Plaintiff was then forced into a Police vehicle while handcuffed, and forcibly transported to a precinct against his will where they charged Plaintiff with crimes they knew he didn't commit, ruining his reputations as he has never been arrested before, and continued to prosecute him on such false charges, all without cause or justification.

TWELFTH: That on or about March 12, 2023 and continuing to March 13, 2023, the Plaintiff was falsely arrested without a warrant by the police officers acting on behalf of the Defendant, THE CITY OF NEW YORK.

THIRTEENTH: That at the aforesaid time and place, and in connection with the

aforesaid arrest, the police officers handcuffed and imprisoned the Plaintiff at all of the locations referred to hereinabove, and at other locations.

FOURTEENTH: That the aforesaid arrest was a false arrest, and constituted false imprisonment, in that it was without probable cause, without a warrant and without just cause or justification.

FIFTEENTH: That The City of New York, its agents, servants, employees, as set forth above, intended to confine Plaintiff; that Plaintiff was conscious of the confinement; that the Plaintiff did not consent to the confinement; and that the confinement was not otherwise privileged.

SIXTEENTH: That the aforesaid detention constituted an unlawful detention in that it resulted from an illegal and unlawful arrest with the Defendants having no cause, justification or right to detain the Plaintiff in their custody.

SEVENTEENTH: That Plaintiff was held in Police Custody, confined against her will; knowing full well that the Plaintiff did not commit the crimes she was charged with.

EIGHTEENTH: That Plaintiff was not read her Miranda Rights, and was denied the right to contact an attorney for over twelve (5) hours.

NINETEENTH: That said arrest was false, groundless and illegal in that Plaintiff committed no crime, broke no law and did no wrong, and there was no probable or just cause to believe she had.

TWENTIETH: That the Plaintiff's arrest took place near his private home in front of his mother, family, neighbors, and other people in her community, and received wide notoriety in the community, and among her family and friends.

TWENTY-FIRST: That due to the fact that the Plaintiff was arrested on charges

which were false and fabricated, Plaintiff's relationship has been strained with family and friends, including his daughters mother.

TWENTY-SECOND: That solely as a result of this false arrest and false imprisonment, the Plaintiff's health was impaired, Plaintiff suffered great mental distress, physical injury, irreparable damage to his reputation and character, her record was permanently marred with the false and groundless notation that she was arrested for assault, incurred substantial mental anguish, and incurred substantial and permanent psychological disturbance and embarrassment, as well as serious and permanent physical injury as hereinafter described.

TWENTY-THIRD: That solely by reason of the foregoing the Plaintiff has been damaged in the amount of Fifteen Million (\$15,000,000.00) Dollars.

SECOND CAUSE OF ACTION
ASSAULT AND BATTERY

TWENTY-FOURTH: Plaintiff repeats reiterates and realleges each and every allegation contained in the paragraphs of the Complaint numbered FIRST through TWENTY-FOURTH as if fully set forth herein at length.

TWENTY-FIFTH: That at the aforesaid times and places the Defendant physically assaulted, hit, struck, kicked, punched, beat and otherwise injured Plaintiff, as described above, causing severe physical injury and herein described.

TWENTY-SIXTH: That the aforesaid beating, striking, hitting and other physical contact was excessive, unnecessary, unjustified, and improper in that the Plaintiff offered no resistance, committed no crime or offense, posed no danger to the Defendants. The Plaintiff who was free to refuse medical treatment and who lawfully refused said treatment, suddenly and without

warning, was slammed face first against the car by the Defendant, Police Officers; was struck in the face; was held down against his will; while he was held against the car, he was unlawfully handcuffed and was struck multiple times; all while surrounded by multiple trained police officers who participated in the assault.

TWENTY-SEVENTH: That the aforesaid acts constitute assault, battery and excessive use of force by the Defendants.

TWENTY-EIGHTH: That solely by reason of the foregoing the Plaintiff has been damaged in the amount of Fifteen Million (\$15,000,000.00) Dollars.

AS AND FOR A THIRD CAUSE OF ACTION
NEGLIGENCE

TWENTY-NINTH: That solely by reason of the foregoing the Plaintiff has been damaged in the amount of Fifteen Million (\$15,000,000.00) Dollars.

THIRTIETH: Plaintiff repeats and realleges each and every allegation contained in the FIRST and SECOND Causes of Action as if fully set forth at length herein.

THIRTY-FIRST: That at the times and places aforesaid, the police officers, while acting within the scope of their employment by the Defendant, THE CITY OF NEW YORK and the New York City Police Department were negligent and grossly negligent and careless in arresting and taking into custody the Plaintiff.

THIRTY-SECOND: That such negligence and gross negligence consisted of, among other things, in that they failed to properly investigate the situation; failed to ascertain the truth of the situation, which could have been ascertained upon reasonable inquiry; failed to discuss the situation with witnesses that were available; took drastic action on an unsubstantiated hunches,

without any further verification or insufficient verification when the situation was not an emergency situation; failed to take proper precautions to prevent unnecessary injury to the Plaintiff while taking Plaintiff into their custody; failed to exercise the proper care and caution in taking the Plaintiff into custody; failed to properly train the police officers; improperly assessed the Plaintiff ; failed to properly investigate the situation, and failed to protect the Plaintiff ; improperly trained police officers; allowed an unstable police officer to remain on the force after repeated complaints of unnecessary force were made against him; failed to properly discipline a police officer that they knew, or should have known, was unfit to serve as a police officer; failed to properly supervise the police officers; and were otherwise careless and negligent.

THIRTY-THIRD: That as a result of the aforesaid negligence, as well as the false arrest and assault and battery as alleged in the First and Second Cause of Action; the Plaintiff suffered severe injuries, including, amount others: Suffered injury to his Back and Right Shoulder; arms, hands, head, face, ribs and chest; suffered bruising throughout his body; was forced to be placed on highly addictive painkillers and other medicine; was caused to have difficulty breathing, sitting and standing; suffered severe, continuous, recurring and excruciating headaches; suffered dizziness and nausea; suffered bruises, black and blues, scrapes and abrasions about the body; suffered severe injury to his eye; was caused to be hospitalized was caused to have moving ; was caused to expend great sums for medical, hospital and other related expenses; will be required in the future to expend great sums for medical, hospital and other related expenses; has suffered great pain and distress; and was otherwise injured.

THIRTY-FOURTH: That the injuries aforesaid were due to the negligence and gross negligence of the Defendants and the Plaintiff having in no way contributed thereto.

THIRTY-FIFTH: That solely by reason of the foregoing the Plaintiff has been damaged in the sum of Fifteen Million (\$15,000,000.00) Dollars.

FOURTH CAUSE OF ACTION
CIVIL RIGHTS VIOLATION

THIRTY-SIXTH: The Plaintiff repeats reiterates and realleges each and every allegation contained in the FIRST, SECOND and THIRD Causes of Actions as if fully set forth herein at length.

THIRTY-SEVENTH: That the aforementioned acts are the result of an actual and defacto policy of THE CITY OF NEW YORK as implemented by its public officials, police commissioners and police departments.

THIRTY-EIGHTH: That the aforesaid occurrences constitute a deprivation of Plaintiff's civil rights under Federal Law specifically 42 U.S.C. Section 1981, 1983, 1988 and the FIRST, FOURTH, FIFTH AND FOURTEENTH AMENDMENTS of the United States Constitution.

THIRTY-NINTH: That the Defendant's agents and employees have been conferred with "Police Officer Status" and as such, were acting under "Color of Law" and "Color of their Authority as Peace Officers" in effecting the assault, battery and imprisonment of Plaintiff.

FORTIETH: That the aforesaid actions constitute an unlawful arrest, unlawful detention, and careless use of force, all in violation of the FIRST, FOURTH, FIFTH AND FOURTEENTH AMENDMENTS to the United States Constitution, as well as 42 U.S.C. Section 1981, 1983 and 1988.

FORTY-FIRST: That solely as a result of the aforesaid violation of Plaintiff's rights of under the aforesaid Federal Statutes, the Plaintiff was caused to suffer the injuries that are hereto

before alleged, as well as general damages for the violation and deprivation of his liberty, invasion of privacy, and other deprivation of Civil Rights, as well as attorney's fees as provided for by said statutes.

FORTY-SECOND: That solely by reason of the foregoing the Plaintiff has been damaged in the sum of Fifteen Million (\$15,000,000.00) Dollars.

FIFTH CAUSE OF ACTION
INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS

FORTY-THIRD: The Plaintiff repeats, reiterates and realleges each and every allegation contained in FIRST, SECOND, THIRD and FOURTH Causes of Actions as if fully set forth herein at length.

FORTY-FOURTH: That the aforesaid acts, the insults, humiliation, degradation and harassment of the Plaintiff by the police officers without justification or provocation, constitutes the tort of intentionally inflicting emotion distress.

FORTY-FIFTH: As a result thereof, Plaintiff has been damaged in the sum of Fifteen Million (\$15,000,000.00) Dollars.

SIXTH CAUSE OF ACTION
MALICIOUS PROSECUTION

FORTY-SIXTH: The Plaintiff repeats reiterates and realleges each and every allegation contained in the FIRST, SECOND, THIRD, FOURTH and FIFTH Causes of Action as if fully set forth herein at length.

FORTY-SEVENTH: That the Defendants prosecuted Plaintiff on these false charges, with full knowledge that there was no basis in law for such a prosecution.

FORTY-EIGHTH: That as a result of such malicious and groundless prosecution, Plaintiff was forced to make numerous Court appearances to Defendant against these baseless charges.

FORTY-NINTH: That after many such appearances all charges were dismissed.

FIFTIETH: That as a result thereof, Plaintiff incurred attorney fees and other expenses in defending against these false charges.

FIFTY-FIRST: As a result thereof, Plaintiff has been damaged in the sum of Fifteen Million (\$15,000,000.00) Dollars.

**SEVENTH CAUSE OF ACTION FOR
PUNITIVE DAMAGES**

FIFTY-SECOND: The Plaintiff repeats, reiterates and realleges each and every allegation contained in the FIRST, SECOND, THIRD, FOURTH, FIFTH and SIXTH Causes of Action as if fully set forth herein at length.

FIFTY-THIRD: That the aforesaid acts by the Defendant was the result of willful, wanton, outrageous, malicious, illegal, brutal and unconscionable intentions and actions without cause or justification.

FIFTY-FOURTH: That as a result of this wanton conduct and gross negligence, Plaintiff is entitled to recover punitive damages.

FIFTY-FIFTH: That solely by reason thereof Plaintiff has been damaged in the sum

of Fifteen Million (\$15,000,000.00) Dollars.

FIFTY-SIXTH: That heretofore and on March 28, 2023, the Plaintiff caused to be served upon the comptroller of the Defendant CITY OF NEW YORK, Notice of Claim, pursuant to Section 50-e of the General Municipal Law, and more than 30 days have elapsed and the claim was not settled or adjusted. Said notice of claim was served within 90 days of the occurrence complained of, and this action was commenced within one year from the date of said occurrence.

WHEREFORE, the Plaintiff demands Judgment against the Defendants in an amount which is in excess of the jurisdictional limit of all lower courts that would otherwise have jurisdiction in this matter, together with the costs and disbursements of this action.

Dated: Brooklyn, N.Y.
March 4, 2024

Yours, etc. 

ANTHONY J. FORZANO, ESQ.
THE FORZANO LAW FIRM
Attorney for Plaintiff
Office & P.O. Address
271 Avenue U
Brooklyn, New York 11223
(718) 372 - 1397

INDIVIDUAL VERIFICATION

STATE OF NEW YORK)
COUNTY OF KINGS) ss:

I, the undersigned, being duly sworn, depose and say:

I am X the _____ one of the _____ Plaintiff(s) _____ Defendant(s) in the within action.

I have read the foregoing X COMPLAINT _____ AMENDED COMPLAINT
_____ BILL OF PARTICULARS _____ SUPPLEMENTAL BILL OF PARTICULARS and
know the contents thereof. The same is true to my own knowledge, except as to the matters
therein stated to be alleged on information and belief, and as to those matters I believe it to be
true. The grounds to my belief as to all matters not stated upon my own knowledge are from
information obtained due to my involvement with this case.

Sworn to before me this

March 4, 2024 (date)

Anthony J. Forzano

